

BEFORE THE BOARD OF BEHAVIORAL HEALTH LICENSURE
STATE OF OKLAHOMA

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State Board of
Behavioral Health Licensure

STATE OF OKLAHOMA, ex rel.,
STATE BOARD OF BEHAVIORAL
HEALTH LICENSURE,

Petitioner,

v.

JOSE SOLIS, LMFT CANDIDATE,

Respondent.

Complaint No. 14-LMFT-27

CONSENT ORDER

COMES NOW, the State of Oklahoma ex rel., the State Board of Behavioral Health Licensure ("Board") by and through its attorney of record, Steven A. Barker, Assistant Attorney General, and Jose Solis, LMFT Candidate, Respondent *Pro Se*, and hereby enter into this Consent Order, pursuant to 75 O.S.2001 § 309(E) of the Administrative Procedures Act. For the purposes of this Consent Order, the following facts are hereby stipulated to by the parties and adopted by the Board:

STIPULATION OF FACTS

1. Respondent marital and family therapist candidate in the State of Oklahoma.
2. On December 8, 2014, a *Request for Inquiry* was filed with the Board against Respondent.
3. Respondent engaged in false advertising, holding himself out to the public as a Licensed Marital and Family Therapist without holding the requisite licensure.
4. Respondent advertised to the public of having a fully bilingual staff on site.
5. Respondent failed to file his LMFT Supervision Agreement and On-Site Supervision Verification Form with the Board.

6. Respondent, through his unlawful conduct described above, has violated 59 O.S. § 1925.1 *et seq.*, OAC 86:15-3-8(a)(b)(c) and e, OAC 86:15-3-8.1, OAC 86:15-9-2(5), OAC 86:15-9-5(a), and OAC 86:15-15-13.

AGREED CONCLUSIONS OF LAW

7. The Board has jurisdiction over this matter and Respondent pursuant to 59 O.S. § 1925.15.

8. Any Stipulation of Fact which is properly a Conclusion of Law is incorporated herein by reference.

9. Respondents conduct constitutes a violation of the Oklahoma Marital and Family Therapists Act and the rules of the Board as follows:

59 O.S. §1925.15(A)

7. Engaged in unprofessional conduct as defined by the rules promulgated by the Board.

OAC 86:15-3-8

- a) LMFTs shall accurately represent their competence, education, training, and experience relevant to their practice of marriage and family therapy.
- (b) LMFTs shall not use a name which could mislead the public concerning the identity, responsibility, source, and status of those practicing under that name and shall not hold themselves out as being partners or associates of a firm if they are not.
- (c) LMFTs shall not use any professional identification (such as a professional card, office sign, letterhead, or telephone or association directory listing) if it includes a statement or claim that is false, fraudulent, misleading or deceptive. A statement is false, fraudulent, misleading, or deceptive if it:
 - (1) contains a material misrepresentation of fact;
 - (2) fails to state any material fact necessary to make the statement, in light of all circumstances, not misleading;
 - (3) is intended to or is likely to create an unjustified expectation.

OAC 86:15-3-8.1

Candidates for licensure as a Licensed Marital and Family Therapist shall not refer to themselves as a Licensed Marital and Family Therapist or LMFT.

OAC 86:15-9-2(5)

The supervised experience is accrued in a private for-profit or private not-for-profit therapy setting without having an approved LMFT supervisor providing on-site supervision, if the agency employing the LMFT Candidate provides an on-site supervisor who is available to the LMFT Candidate any time services are being rendered by the LMFT Candidate, and the LMFT Candidate is receiving supervision for licensure from an approved LMFT supervisor. Out of state on-site supervisors may be approved on a case-by-case basis.

OAC 86:15-15-13

Any person found to be practicing licensed marital and family counseling without being either properly licensed, exempt or under the approved supervision of an LMFT as part of the licensure process shall be ordered to cease practicing and may be subject to an administrative penalty. The Board may seek the assistance of the courts if the actions continue.

AGREED ORDER

In light of the stipulated facts and agreed conclusions of law set forth above, the Board and Respondent agree to the following order:

10. Respondent shall review all of the statutes and rules above cited with an LMFT supervisor. Respondent shall submit within thirty (30) days of approval of this *Order*, a two page paper, single spaced, detailing what Respondent has learned from this process, and how he intends to make sure future violations are avoided.

11. Respondent shall close and dissolve the private business known as "Destino."

Respondent shall submit proof of closure, through dissolution records or otherwise to the Board within thirty (30) days of approval of this *Order*.

12. Respondent shall pay a fine of \$500.00 in certified funds to the Board of Behavioral Health within thirty (30) days of approval of this *Order*.

PUBLIC RECORD

Respondent acknowledges that once adopted by the Board, this Consent Order and all associated documentation becomes a matter of public record, unless otherwise excluded by law.

ACCEPTANCE BY BOARD

This Consent Order will not be submitted for Board consideration until it has been agreed to and executed by Respondent. The Consent Order shall not become effective until it has been approved by a majority of the Board and endorsed by a representative of the Board.

It is hereby agreed between the parties that this Consent Order shall be presented to the Board with a recommendation of approval from the Board at the next scheduled meeting of the Board. Respondent understands that the Board is free to accept or reject this Consent Order and, if rejected by the Board, a formal disciplinary hearing on the complaint against Respondent may be held.

If the consent Order is not accepted by the Board, it shall be regarded as null and void. Admissions by Respondent in the Consent Order will not be regarded as evidence against her at the subsequent disciplinary hearing. Respondent will be free to defend herself and no inferences will be made from her willingness to have entered into this agreement. It is agreed that neither the presentation of the Consent Order nor the Board's consideration of the Consent Order will be deemed to have unfairly or illegally prejudiced the Board or its individual members and therefore will not be grounds for precluding the Board or any individual Board member from further participation in proceedings related to the matters set forth in the Consent Order.

VOLUNTARY WAIVER OF RIGHTS

Respondent is fully aware of his rights to contest the charges pending against him. Respondent acknowledges these rights include: representation by an attorney at his own expense; the right to a public hearing on any charges or allegations filed; the right to confront and cross-examine witnesses called to testify against him; the right to present evidence on his own behalf; the right to compulsory process to secure attendance of such witnesses; the right to testify on his own behalf; the right to receive written findings of fact and conclusions of law supporting the decision on the merits of the complaint and the right to obtain judicial review of the Board's decision. Respondent in exchange for the Board's acceptance of this Consent Order voluntarily waives all of these rights.

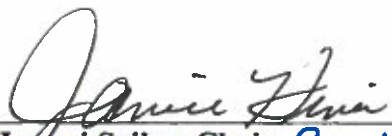
COMPLETE AGREEMENT

This Consent Order consists of five (5) pages and embodies the entire agreement between the Board and Respondent. It may not be altered and modified without the express consent of the parties.

IT IS SO ORDERED.

STATE BOARD OF BEHAVIORAL HEALTH LICENSURE

By:


~~Joanni Sailor, Chair~~ *Board member*

Dated this 2nd day of ~~August~~ *Sept.*, 2015.

I have read the above Stipulations of Fact, Conclusions of Law and Consent Order. I understand that by its terms I waive certain rights accorded me under Oklahoma law. I agree to the above Consent Order:


Jose Solis, Respondent

CERTIFICATION OF BOARD ATTORNEY

I believe this Consent Order to be in the best interest of the State Board of Behavioral Health Licensure and the State of Oklahoma for the violations as stipulated to in the foregoing Consent Order.

Dated this 28th day of August, 2015.



Steven A. Barker, OBA #30981

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